Bond amounts and payments

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Other pages have information about claiming a bond (https://www.consumer.vic.gov.au/housing/renting/rent-bond-bills-and-condition-reports/bond/bond-claims-and-refunds) at the end of an agreement and when additional bond can be requested (https://www.consumer.vic.gov.au/housing/renting/rent-bond-bills-and-condition-reports/bond/bond-top-ups).

What is a bond?

A bond is a payment that rental providers (landlords) can request from renters at the start of a rental agreement (lease). It acts as financial protection for the rental provider and can be used to cover some costs they may have to pay when the renter moves out. Bonds are held in trust by the Residential Tenancies Bond Authority (RTBA) (https://www.consumer.vic.gov.au/about-us/statutory-bodies-and-committees/residential-tenancies-bond-authority), a statutory authority within the Department of Government Services.

Any renter who signs a residential rental agreement can be asked to pay a bond.

The bond is repaid at the end of the rental agreement once the rental provider and renter(s) agree on how it should be repaid. The bond is the renter's money and should be repaid to the renter in most circumstances.

Eligible renters can also choose to port (transfer) their existing bond money to a new rental property instead of seeking a repayment. This means the renter doesn't need to pay a new bond while waiting for their existing bond to be repaid. To learn more about portable bonds visit vic.gov.au/portable-bonds (https://www.vic.gov.au/portable-bonds).

The bond and rent are separate payments. The bond can't be used to pay rent.

If a bond has been paid, the rental provider must complete a condition report (https://www.consumer.vic.gov.au/housing/renting/rent-bond-bills-and-condition-reports/condition-reports) and give the renter(s) a copy before they move in.

If you are sub-letting, your head renter may ask you to pay a bond. Read more about sub-lets (https://www.consumer.vic.gov.au/housing/renting/starting-and-changing-rental-agreements/different-rental-agreements/subletting).

You can also find information on lodging and claiming bonds, increases to bonds (https://www.consumer.vic.gov.au/housing/renting/rent-bond-bills-and-condition-reports/bond/bond-top-ups), and getting help if you can't pay a bond.

Maximum bond amounts

In most cases, a bond can't be more than one month's rent.

A rental provider can only ask for a higher bond when either:

- the weekly rent for the property is more than $900
- VCAT has set a higher bond for the property. They might do this because of the character of the property or the quality of the fittings and furniture.

There is no rule about maximum bond in these cases.

Different rules about bonds apply for residents of rooming houses, caravan parks and residential parks.

Note: if your bond lodgement exceeds the weekly rent amount, you will receive a warning notification when you complete your lodgement. This includes if you have rounded a number. You can proceed if you believe you comply with the requirements.

Maximum bond amount for rooming house residents

For residents in rooming houses, the maximum amount of bond depends on the type of agreement they have.

- The bond can't be more than 28 days' rent for residents on a fixed term rooming house agreement.
- The bond can't be more than 14 days' rent for residents who aren't on fixed term agreements.

A rooming house is a property where 4 or more people can occupy the rooms. Each resident has an individual agreement with the rooming house operator. This makes it different to a share house where everyone signs the same agreement. Find out more

about rooming house agreements (https://www.consumer.vic.gov.au/housing/renting/starting-and-changing-rental-agreements/different-rental-agreements/rooming-house-agreements).

Maximum bond amount for caravan park residents

The bond can't be more than one month's rent or hiring charge in a caravan park.

A park owner can't ask for a bond unless the parties have a written residency agreement.

Someone renting a caravan and a site separately may have to pay 2 separate bonds: one for the caravan and another for the site.

Find out more about residency in a caravan park (https://www.consumer.vic.gov.au/housing/renting/starting-and-changing-rental-agreements/different-rental-agreements/residency-in-a-caravan-park).

Maximum bond amount for part 4A park residents who own their moveable dwelling

A site tenant is someone who owns a moveable dwelling and rents a site for it in the caravan park or residential park they live in. A movable dwelling is also called a manufactured home or relocatable home.

The bond for site tenants can't be more than the equivalent of one month's rent if the rent is $900 a week or less.

Find out more about site agreements in residential parks and villages (https://www.consumer.vic.gov.au/housing/renting/starting-and-changing-rental-agreements/different-rental-agreements/site-agreements-in-residential-parks-and-villages).

How and when bonds are paid

Bonds are not mandatory. However, if a bond is requested in the rental agreement, the renter must pay it. If the bond is not paid, the rental provider can give the renter a notice to vacate.

Most rental providers ask for bonds before renters move in.

Renters can pay the bond by:

- Paying the rental provider, who then pays the amount to the RTBA during the bond lodgement, or
- Pay the RTBA directly during the bond lodgement, or
- Using the Portable Rental Bond Scheme (https://www.vic.gov.au/portable-bonds) to transfer their existing bond money to a new rental property (if eligible)

The rental provider chooses the payment method when they lodge the bond. Renters should ask the rental provider to select payment method that suits them.

Read more about different lodgement types (https://www.consumer.vic.gov.au/housing/renting/rent-bond-bills-and-condition-reports/bond/lodging-the-bond-with-the-rtba).

There are rules about what happens to the bond after the renter has paid:

- If the renter paid the rental provider, the rental provider must lodge the bond with the RTBA within 14 days (not including public holidays) of receiving the bond amount.
- The RTBA must give a receipt with the bond number and other key information to the rental provider and all renters within 7 days of receiving the bond.

Once a bond has been paid, the rental provider must complete a condition report. Find out more about condition reports (https://www.consumer.vic.gov.au/housing/renting/rent-bond-bills-and-condition-reports/condition-reports) or the process of lodging the bond (https://www.consumer.vic.gov.au/housing/renting/rent-bond-bills-and-condition-reports/bond/lodging-the-bond-with-the-rtba), including how to check that your bond has been lodged.

If there are multiple renters

If you are paying the RTBA directly, all renters will receive a link to pay. However, only one renter can pay the bond in full, as it must be lodged as a single payment. All the renters should agree who is going to pay, and how they will be reimbursed, before lodging.

Homes Victoria bond loans

Government bond loans are available to people on low incomes who might not be able to pay a bond, and don't have any other financial options. These are called Homes Victoria bond loans or RentAssist bond loans.

Read more about Homes Victoria bond loans (https://www.consumer.vic.gov.au/housing/renting/rent-bond-bills-and-condition-reports/bond/homes-victoria-bond-loans).

When extra bond can be requested

In most circumstances, renters will only pay a single bond for the duration of their rental agreement. A rental provider can only charge an additional bond in specific circumstances.

Rental providers can only ask for extra bond:

- in a long-term rental agreement (of more than 5 years, and with an end date of at least 5 years in the future), or

- when renters make certain changes to a property, with the agreement that the rental provider is responsible for removing the changes at the end of the lease.

The rental provider must make sure they give enough notice.

The renter can challenge an extra bond request at VCAT. Among the factors it will consider, VCAT will consider whether paying the extra bond will result in severe hardship for the renter.

Read the full conditions which apply to extra bonds (https://www.consumer.vic.gov.au/housing/renting/rent-bond-bills-and-condition-reports/bond/bond-top-ups).

Sections of the Act

If you want to know what the law says about bond amounts and payments, you can read these sections of the *Residential Tenancies Act 1997* (https://www.legislation.vic.gov.au/in-force/acts/residential-tenancies-act-1997):

- Part 2 – Division 2 – Bonds
- Part 10 – Bonds and the Residential Tenancies Bonds Authority.

Last updated: 5 July 2026



(https://www.consumer.vic.gov.au/resources-and-tools/yarrka-barring-resources-for-first-nations-people)

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